

Ajit Pandit v. State of U.P.

Allahabad High Court · Single Judge · 31 May 2023 · 2023:AHC:122574 · Criminal Misc. Bail Application No. 23436 of 2023 · **Bail allowed on a personal bond and two sureties, without comment on the merits**

HEADNOTE

A Junior Engineer of Dakshinachal Vidyut Vitaran Nigam, prosecuted under Section 7 of the Prevention of Corruption Act, 1988 for an alleged demand of Rs. 10,000 to submit a low estimate for a new 2 kW commercial connection, was enlarged on bail without any comment on the merits. The Court held that prima facie no Section 7 offence was made out, in view of an order of U.P. Power Corporation Ltd. dated 19 March 2023, his clean antecedents, recovery of only Rs. 10,000, his being a government servant, and the absence of any shown need for custodial arrest while investigation continued. Counsel's case that the connection had already been rejected on 10 March 2023 under paragraph 43 of the U.P. Electricity Supply Code because of premises dues, and his reliance on Neeraj Dutt, were not dislodged on the record. The Court did not construe that paragraph or decide guilt.

FACTUAL SUMMARY

Ajit Pandit, a Junior Engineer of Dakshinachal Vidyut Vitaran Nigam, applied for bail in Case Crime No. 0151 of 2023 under Section 7 of the Prevention of Corruption Act, 1988, Police Station Baldeo, District Mathura. A prompt FIR dated 20 April 2023, lodged by Sanjay Kumar Yadav, named him as the sole accused. Complainant Aman Kumar had applied for a new commercial connection of 2 kW at Mathura Saray Salwahan, Mathura. The case was that Pandit demanded Rs. 10,000 to submit a low estimate; a trap that day recovered the cash, and the chemical test was said to be against him. He had been in jail since 20 April 2023.

Counsel said the fresh-connection application had already been rejected on 10 March 2023, in terms of paragraph 43 of the U.P. Electricity Supply Code, because electricity dues stood against the premises, and that the demand-and-acceptance test in Neeraj Dutt was not met. The 24 May 2023 hearing was adjourned because the Additional Government Advocate had no instructions. Investigation was still going on when bail was heard on 31 May 2023.

HOLDING-UNITS

INTERPLAY · OFFTOPIC::pc-act-s7-bail-electricity-employee

Section 7 bail of a distribution Junior Engineer over a new-connection estimate; Supply Code not construed

QUESTION

Where a distribution licensee's Junior Engineer is prosecuted under Section 7 of the Prevention of Corruption Act for an alleged demand to submit a low estimate for a new commercial connection, and counsel says the application was already rejected for premises dues under paragraph 43 of the U.P. Electricity Supply Code, may bail be granted without construing that paragraph or the charge?

HOLDING

Yes, at the bail stage and without any comment on the merits. The Court held that prima facie no offence under Section 7 of the Prevention of Corruption Act, 1988 was made out against the applicant, in view of the order passed by U.P. Power Corporation Ltd. on 19 March 2023, his clean antecedents, recovery of only Rs. 10,000, his being a government servant and therefore unlikely to flee, and the Additional Government Advocate's inability to show that custodial arrest was necessary for the investigation, which was still going on. The Additional Government Advocate could not dislodge counsel's factual and legal submissions on the record at this stage. Bail was allowed on a personal bond with two sureties each in the like amount, with the usual conditions on attendance, non-adjournment, and the trial court's power to cancel bail for wilful breach. The Court did not construe paragraph 43 or decide whether a bribe was demanded or accepted.

¶ order of 31.5.2023

QUALIFIER

Expressly without comment on the merits. The U.P. Power Corporation Ltd. order of 19 March 2023 is not set out. Investigation was still pending.

FLAG The source PDF also contains the unnumbered adjournment of 24.5.2023 (Rajeev Misra, J.: the Additional Government Advocate had no instructions; the matter was to come up afresh on 31.5.2023). The operative grant is 31.5.2023, Neutral Citation No. 2023:AHC:122574. Counsel invoked 'paragraph 43 of the U.P. Electricity Supply Code' for the 10.3.2023 rejection of a fresh 2 kW commercial connection because of electricity dues on the premises. That citation is not Clause 4.43 (load-enhancement timelines). The Court did not identify it with Clause 4.3 or any other numbered clause, and did not construe it. The Court relied on an unexplained U.P. Power Corporation Ltd. order dated 19.3.2023, a different date from the 10.3.2023 rejection. Counsel cited *Neeraj Dutt v. State (Govt. of N.C.T. Delhi)*, 2022 SCC Online SC 1724, paragraph 68; the Court did not name that decision. The order's 'read handed' is recorded as printed. Bail is not an adjudication of the connection, the dues, or guilt. No Indian Kanoon doc-id is in the fingerprint.

PRINCIPLE TAGS

pc-act-s7-bail-without-comment-on-merits A Dakshinachal Vidyut Vitaran Nigam Junior Engineer, sole accused in a Section 7 Prevention of Corruption Act trap over an alleged Rs. 10,000 demand to submit a low estimate for a new 2 kW commercial connection, was enlarged on bail without comment on the merits. The Court treated the U.P. Power Corporation Ltd. order of 19.3.2023, clean antecedents, the small recovery, government service, and the want of any need for custodial investigation as showing that prima facie no Section 7 offence was made out. Paragraph 43 of the Supply Code, invoked by counsel for the earlier rejection, was not construed. ¶ [order of 31.5.2023](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER PARAGRAPH 43 OF THE U.P. ELECTRICITY SUPPLY CODE AUTHORISED REJECTION, ON 10.3.2023, OF THE FRESH 2 KW COMMERCIAL CONNECTION BECAUSE ELECTRICITY DUES STOOD AGAINST THE PREMISES, AND WHICH NUMBERED CLAUSE THAT PARAGRAPH IS

Counsel's submission only. The order does not quote paragraph 43. It is not Clause 4.43 (load-enhancement timelines), and the Court did not cite Clause 4.3 or any other catalogued clause. ¶ [order of 31.5.2023](#)

NOT DECIDED — WHAT THE ORDER OF U.P. POWER CORPORATION LTD. DATED 19.3.2023 DECIDED

The Court relied on that order for the prima facie view that no Section 7 offence was made out, but did not set out its contents. It is a different date from the 10.3.2023 rejection. ¶ [order of 31.5.2023](#)

NOT DECIDED — GUILT UNDER SECTION 7 OF THE PREVENTION OF CORRUPTION ACT, 1988, INCLUDING DEMAND AND ACCEPTANCE AND THE TRAP AND CHEMICAL TEST

Expressly no comment on the merits. Counsel placed *Neeraj Dutt*, 2022 SCC Online SC 1724, paragraph 68; the Court did not decide that test. Left to trial. ¶ [order of 31.5.2023](#)

NOT DECIDED — WHETHER THE NEW COMMERCIAL CONNECTION AT MATHURA SARAY SALWAHAN SHOULD BE RELEASED, AND THE QUANTUM OF THE PREMISES DUES

The connection and the dues appear only as the setting of the prosecution. Neither was adjudicated. ¶ [order of 31.5.2023](#)

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Neeraj Dutt v. State (Govt. of N.C.T. Delhi)</i> 2022 SCC Online SC 1724 Supreme Court (Constitution Bench)	Counsel relied on paragraph 68 for the demand-and-acceptance test under Section 7 of the Prevention of Corruption Act, and submitted that the test was not satisfied at this stage. The Court did not name the decision. It held, without comment on the merits, that prima facie no Section 7 offence was made out in view of the U.P. Power Corporation Ltd. order dated 19.3.2023.		Petitioner	Referred

